

17 February 2020

**49-87 New Road, Rainham**

in the London Borough of Havering

planning application no. P0947.17

**Strategic planning application stage II referral**

Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008.

**The proposal**

Outline planning application for the demolition of all buildings and redevelopment of the site for residential use providing up to 259 units with ancillary car parking, landscaping and access

**The applicant**

The applicant is a JV between **London Borough of Havering & Notting Hill Genesis** and the architect is **Bell Philips**.

**Key dates**

**Stage 1 considered:** 29 August 2017

**Havering Council Planning Committee:** 7 November 2019

**Strategic issues**

**Principle of development:** The site forms part of a wider masterplan brought forward by the JV, comprised of 9 sites along New Road, of which two are referable to the Mayor. The principle of the proposed mixed-use redevelopment of the site remains strongly supported, in accordance with the London Plan and Intend to Publish London Plan.

**Affordable housing:** The application proposes 35% affordable housing across their masterplan of sites, comprised of 60% intermediate and 40% London Affordable Rent (LAR). As the site is presently in industrial use, the threshold level for the Fast Track route is 50% affordable housing. The applicant has provided a financial viability assessment, which assesses the viability of the site itself as well as the 9 other sites within the JV's masterplan. GLA officers have confirmed that 35% is the maximum level that the Masterplan could provide. The exact tenure breakdown would be provided in a subsequent reserved matters application or planning obligation; however, a minimum of 40% LAR is secured.

**Urban design:** The primary urban design issue at consultation stage related to the impact of the significant quantum of car parking. The application has since has been revised to reduce the number of car parking spaces from 0.74 spaces per unit to 0.34 spaces per unit, which improves the public realm and setting of the buildings. Parameter plans, securing height, building footprint, land uses and access have been secured. All matters are reserved, with detailed design to follow in a reserved matters application.

Matters relating to **energy** and **transport** have also been addressed.

**The Council's decision**

Havering Council has resolved to grant planning permission subject to conditions.

**Recommendations**

Havering Council be advised that the Mayor is content for the borough to determine the case themselves, subject to any action that the Secretary of State may take, and does not therefore wish to direct refusal, or that he is to be the local planning authority.

## Context

1 On 3 July 2017 the Mayor of London received documents from Havering Council notifying him of a planning application of potential strategic importance to develop the above site for the above uses.

2 The application is referable under Category 1A of the Schedule to the Order 2008:

- Category 1A: Development which comprises or includes the provision of more than 150 houses, flats, or houses and flats.

3 On 29 August 2017, the Deputy Mayor for Planning, Regeneration & Skills (hereafter “the Deputy Mayor”) considered planning report D&P/4305/01, and subsequently advised Havering Council that the application did not comply with the London Plan, but that the possible remedies set out in paragraph 38 of that report could address these deficiencies.

4 A copy of the above-mentioned report is attached. The essentials of the case with regard to the proposal, the site, case history, strategic planning issues and relevant policies and guidance are as set out therein, unless otherwise stated in this report.

5 On 15 October 2019, Havering Council resolved to grant planning permission, in accordance with officer’s recommendation. On 10 February 2020 Havering Council advised the Mayor of their decision. Under the provisions of Article 5 of the Town & Country Planning (Mayor of London) Order 2008, the Mayor may allow the draft decision to proceed unchanged, direct the Council to refuse planning permission under Article 6, or issue a direction, under Section 2A of the Town and Country Planning Act 1990 in accordance with Article 7 of the 2008 Order, that he is to act as the local planning authority for the purpose of determining the application and any connected application. The Mayor has until 24 February 2020 to notify the Council of his decision and to issue any direction.

6 The Mayor’s decision on this case, and the reasons, will be made available on the GLA’s website [www.london.gov.uk](http://www.london.gov.uk).

## Consultation stage issues summary

7 At the consultation stage, Havering Council were advised that, whilst the application was broadly supported in strategic planning terms, it did not comply with the London Plan for the following reasons:

- **Affordable housing:** a multi-site approach is proposed across nine sites along the New Road in partnership with a Registered Provider and there is an aspiration to deliver 35% affordable housing. The applicant must commit to a comprehensive affordable housing strategy across the programme, which must secure the timely delivery of the maximum amount of affordable housing. This strategy will be subject to robust scrutiny by GLA and Council officers. Further discussions are required to agree an appropriate mechanism to secure overall delivery across the sites. The use of grant should be explored and modelled to increase the offer. Early implementation and late stage review mechanisms should be secured, in order to ensure compliance with London Plan Policy 3.12 and the Mayor’s Affordable Housing and Viability SPG.

- **Urban design:** there are concerns with the design, appearance and residential quality of the scheme, arising from the excessive surface car parking and poor definition of public and private space and routes. The applicant should reduce car parking and improve the quality of the spaces between the buildings, to ensure compliance with London Plan Policies 7.1, 7.3 and 7.4.
- **Climate change:** the energy strategy does not fully accord with London Plan Policies 5.2 and 5.9. Further information regarding energy efficiency, the site-wide network and renewable energy is required. The final agreed energy strategy should be appropriately secured by the Council, along with contributions towards off-site mitigation.
- **Transport:** in order to comply with London Plan Policies 6.3, 6.7, 6.9, 6.10, 6.13 and 6.14, the applicant should address concerns over the trip generation analysis and potential impact on bus services. Parking provision should be reduced to promote sustainable transport modes and cycle parking increased. Public realm improvements, a travel plan, delivery and servicing plan and construction logistics plan should also be secured.

## Mayoral policy update

8 Since the stage 1 response was issued in August 2017, the Mayor's draft London Plan has been published. This was first published for Regulation 17 consultation in December 2017 and an Examination in Public held in 2019. On 17 December 2019, the Mayor published the Intend to Publish version and issued this to the Secretary of State. The Intend to Publish Plan is the latest version of the plan.

## Proposed development update

9 Since the consultation response was issued, the applicant has revised the scheme to increase the number of residential units to 259 units (an increase of 52 units) in buildings of 6 – 7 storeys. The GLA have engaged with the applicant, the Council and TfL to discuss the proposed amendments as well as address issues outstanding from consultation stage. These are discussed further below.

### Principle of development

10 As set out at Stage 1, the principle of the proposed mixed-use redevelopment of the site was strongly supported, in accordance with the London Plan. The Intend to Publish London Plan also promotes the regeneration of Opportunity Areas and particularly the use of brownfield land, whilst Policies E4 and E7 support the release and redevelopment of industrial land for other uses where this has been released through a plan-led approach. Therefore, the principle of development remains strongly supported. It is also relevant to note that since the consultation response was issued, the Deputy Mayor for Planning, Regeneration and Skills granted planning permission for the Beam Park development site, directly opposite the site, for up to 3,000 homes, non-residential uses and a new railway station. The railway station and commercial uses within that site will serve the residential units on the adjacent sites, including this site.

11 The JV currently has no interest in the site, meaning it is not possible for the JV partners to sign up to a legal agreement. The Planning Practice Guidance notes that a negatively-worded condition, limiting the development that can take place until a planning obligation or other agreements have been agreed, is unlikely to be appropriate

in the majority of cases; however, it notes that in exceptional circumstances it may be appropriate. In this instance, it is considered appropriate, given that it is not possible to enter into a legal agreement and without the condition, requiring a legal agreement to be entered into, the scheme would not offset any of its impacts or suitably secure any of its benefits.

12 As such, a condition has been secured, which requires a legal agreement to be entered into prior to the commencement of development in a format substantially the same as the draft s106 agreement appended to the decision notice. When the scheme was presented to Havering Committee, the planning obligations were secured via a condition, without reference to a s106 agreement. The GLA have now secured a draft s106 agreement, which will be appended to the decision notice and will provide additional certainty that the affordable products will comply with the relevant Mayoral policy and to ensure that the early and late stage review comply with the Mayor's Affordable Housing & Viability SPG.

### Housing

13 GLA officers noted that the scheme should seek to maximise residential densities on the site. The Intend to Publish London Plan now promotes a design-led approach to densities and removed the prescriptive density matrix. Notwithstanding the policy change, the comments with regard to optimising the site's density remain relevant. It is considered that the amendments to the scheme to provide 53 additional residential units (and a total of 259 residential units) ensure that the development responds to its varied context, which includes Beam Park development, extending to 16 stories with new station to the south, and the detached bungalows and two storey terraced houses to the north.

14 The scheme proposes 35% affordable housing across their masterplan, comprised of 40% London Affordable Rent and 60% intermediate rent. The homes will be delivered across the Masterplan so that the cumulative total of affordable homes does not fall below 35%. The exact tenure breakdown would be provided in a subsequent reserved matters applications; however, the draft decision notice secures a minimum of 40% LAR across Notting Hill's sites. Given that the applicant is using Housing Zone funding and is a Programme Partner of the GLA, the flexibility is acceptable to GLA officers, as it enables the applicant to respond to local context and demand, albeit securing a minimum affordable rental provision, when developing the affordable offer. Table 1 an indicative phasing of the delivery of these sites, whilst figure 1 maps these along New Road.

15 As the site would be in public ownership once acquired and that the existing use is industrial, the threshold level for the Fast Track route is 50% affordable housing. The applicant has provided a financial viability assessment (FVA) for the 9 sites that comprise the JV programme (of which 2 are referable) as well as an FVA for the site itself. GLA officers have interrogated the viability assessment and confirm that, whilst not all inputs into the appraisals are agreed, 35% is the maximum reasonable level of affordable housing. Early and late stage reviews have also been secured through the obligation condition.

Table 1 – Indicative Masterplan delivery

|                     | Phase 1 & 2 | Phase 3    | Phase 4      | Phase 5     | Phase 6 – present application | Phase 7       | Phase 8      |
|---------------------|-------------|------------|--------------|-------------|-------------------------------|---------------|--------------|
| Number of homes     | 50          | 24         | 77           | 62          | 259                           | 110           | 187          |
| Expected completion | March 2022  | April 2022 | January 2023 | August 2024 | March 2025                    | November 2024 | October 2025 |

\*also referable to Mayor under GLA ref 4499.

### Urban design

16 At stage 1, concern was raised regarding the dominance of surface level car parking and the subsequent impact this had upon the quality of amenity space and upon residential quality. As part of the revisions to the scheme, the applicant reduced the car parking from 0.74 spaces per unit to 0.34 spaces per unit, which broadly aligns with that approved on the adjacent Beam Park site. The reduction in car parking is welcomed and has addressed concerns raised in respect of urban design; however, in any reserved matters application, the applicant should explore opportunities to reduce this further and green and disguise as much parking as possible.

17 A number of parameter plans have been secured, controlling height, development plot, access and land use. As all matters are reserved, full design detail will be provided at reserved matters stage. When assessing the Reserved Matters applications the Council must ensure the detailed design, complies with the relevant Development Plan standards.

### Energy

The proposed climate change mitigation measures were broadly supported at consultation stage. A carbon offset contribution has been secured as part of the planning obligations conditions. Noting the outline nature of the scheme, the Council may consider whether it is appropriate to recalculate this once the detailed design has been submitted. The application therefore complies with London Plan Policies 5.2, 5.10, 5.12 and 5.13 and Intend to Publish London Plan policies SI2, SI3 and SI13.

### Transport

18 The impacts on the bus network should be mitigated and a contribution (via s106 agreement or similar) for £246,050 has been secured by condition for this purpose but the amount is not specified, which is based on the tariff approach applied to all development in the area. Funding towards the CPZ and £22,991 for the proposed Linear Park on New Road have also been secured, which will be additional to the works the developer will undertake as part of their scheme and through a s278 agreement.

19 In response to Stage 1 comments, cycle parking has been increased to comply with the Intend to Publish London Plan Policy T5, with details secured by condition. TfL , therefore, consider that the application is broadly in accordance with the transport policies of the London Plan and its impacts adequately mitigated.

## Response to consultation

### Response from neighbours

20 Havering Council advertised the application with a local press notice, through site notices and through writing to 146 local residents. The Council received 1 objection.

21 The objector's concerns included the following:

- Too many residential units;
- Services (doctors, schools, dentists) are already over-subscribed;
- Queried whether a new school and health centre on the site will be guaranteed;
- Impact upon traffic;
- Lack of parking, resulting in parking on existing roads, which takes parking away from existing residents;
- Queried whether C2C has been consulted.

22 It is relevant to note that it is not proposed to provide a school or health centre on this site, rather these will be provided on the Beam Park site, which lies opposite. Havering Council also confirmed within the Committee Report that network rail had been consulted.

### Response from statutory and non-statutory organisations

23 Representations were made from the following statutory organisations:

- Environment Agency – No objection, subject to recommending that finished floor levels are set above breach level, which is 3.26m AOD;
- Essex & Suffolk Water – No objection subject to informatives;
- Thames Water – No objection subject to informatives;
- Metropolitan Police – No objection, subject to Designing Out Crime condition;
- Greater London Archaeological Advisory Service – No objection, subject to pre-commencement planning conditions. Relevant conditions have been added to the decision notice.
- London Fire Brigade – No objection, subject to the installation of two fire hydrants in Phase 2b.

### Consultation summary

24 It is noted that, having considered the above consultation responses, Havering Council have provided specific responses within its Committee Report or within draft decision notice.

25 Having had regard to these, GLA officers are satisfied that the statutory and non-statutory responses to the Council's consultation process do not raise any material planning issues of strategic importance that have not already been considered at consultation stage, and/or in this report.

## **Condition 35 – legal agreement prior to commencement**

26 As discussed above, condition 35 of the draft planning permission requires a legal agreement to be entered into prior to the commencement of development in a format substantially the same as the version appended to the decision notice. The draft s106 agreement includes the following:

- 35% affordable housing by habitable room across the Masterplan, comprised of 60% intermediate and 40% London Affordable Rent;
- Early and late stage review, with any surplus shared 60:40 in favour of the Council. The reviews are structured in line with GLA guidance;
- School places contribution of £1,165,500;
- CPZ sum of £29,008;
- Linear park contribution of £22,991;
- Carbon offset contribution of £310,440;
- Bus capacity improvements and travel monitoring, including a financial contribution of £246,050.

## **Article 7: Direction that the Mayor is to be the local planning authority**

22 Under Article 7 of the Order the Mayor could take over this application provided the policy tests set out in that Article are met. In this instance, the Councils have resolved to grant permission with conditions and planning obligations which satisfactorily addresses the matters raised at consultation stage. There are, therefore, no sound planning reasons for the Mayor to take over this application.

## **Legal considerations**

23 Under the arrangements set out in Article 5 of the Town and Country Planning (Mayor of London) Order 2008, the Mayor has the power to issue a direction under Article 7 that he is to act as the local planning authority for the purpose of determining the application. The Mayor may also leave the decision to the local authorities. If the Mayor decides to direct that he is to be the local planning authority, he must have regard to the matters set out in Article 7(3) and set out his reasons in the direction.

24 The Mayor may also leave the decision to the local authority. In directing refusal the Mayor must have regard to the matters set out in Article 6(2) of the Order, including the principal purposes of the Greater London Authority, the effect on health and sustainable development, national policies and international obligations, regional planning guidance, and the use of the River Thames. The Mayor may direct refusal if he considers that to grant permission would be contrary to good strategic planning in Greater London. If he decides to direct refusal, the Mayor must set out his reasons, and the local planning authority must issue these with the refusal notice. If the Mayor decides to direct that he is to be the local planning authority, he must have regard to the matters set out in Article 7(3) and set out his reasons in the direction.

## **Financial considerations**

25 Should the Mayor direct refusal, he would be the principal party at any subsequent appeal hearing or public inquiry. Government Planning Practice Guidance

emphasises that parties usually pay their own expenses arising from an appeal. Following an inquiry caused by a direction to refuse, costs may be awarded against the Mayor if he has either directed refusal unreasonably; handled a referral from a planning authority unreasonably; or behaved unreasonably during the appeal. A major factor in deciding whether the Mayor has acted unreasonably will be the extent to which he has taken account of established planning policy. Should the Mayor take over the application he would be responsible for holding a representation hearing and negotiating any planning obligation. He would also be responsible for determining any reserved matters applications (unless he directs the council to do so) and determining any approval of details (unless the council agrees to do so).

## Conclusion

26 The strategic issues raised at consultation stage regarding affordable housing, urban design, energy and transport have been satisfactorily addressed, and appropriate planning conditions have been secured, including a condition requiring a legal agreement to be entered into prior to commencement. For the avoidance of doubt, this condition is only acceptable due to the unique circumstances of the case, in line with PPG guidance. As such the application complies with the London Plan and Intend to Publish London Plan, and there are no sound reasons for the Mayor to intervene in this case.

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